

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA E. CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDI-25-801764

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR HEARING RE MOTION FOR RECONSIDERATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig Calder (Father). They share six minor children: Elias (7/1/10), Liora (10/7/11), David (10/25/14), Tanya (8/5/17), Charles (1/16/19), and Sariel (3/27/22).
- 2) On 9/2/25, the Court issued a temporary restraining order wherein Father is the protected party and Mother is the restrained party. The Court awarded Father sole legal and sole physical custody of the minor children.
- 3) On 12/3/25, the Court granted Mother supervised visitation with the minor children for 2 hours per week.
- 4) On 6/23/26 (per the Findings and Order After Hearing (FOAH) filed 7/9/26), the Court granted Father's request for guideline child support based on Father's 100% parenting timeshare and ordered, in pertinent part:
 - a. Mother shall pay Father \$1,435 in guideline monthly child support by the 1st of every month. Payments shall commence on 7/1/26.

- 1 b. Mother owes Father \$2,870 in guideline child support arrears for the period of 4/28/26 –
2 6/30/26. Mother shall pay Father an additional \$250 until this balance is paid in full.
- 3 5) On 7/16/26, Mother filed a motion for reconsideration of the Court’s 6/23/26 order (FOAH filed
4 7/9/26) asserting that, on 6/24/26, she discovered the children reside with their aunt in
5 Sacramento and haven’t seen their Father since May of 2026. Mother states Father was receiving
6 \$5,000 per month in IHSS wages until May of 2026 and failed to provide documentation
7 regarding his income to the Court.
- 8 6) On 7/16/26, Mother filed a Proof of Electronic Service indicating Father was served by email on
9 7/16/26.
- 10 7) Father did not file a Responsive Declaration.

11 **B. Findings and Order**

- 12 1) Per Code of Civil Procedure section 1008(a), “When an application for an order has been made to
13 a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on
14 terms, any party affected by the order may, within 10 days after service upon the party of written
15 notice of entry of the order and based upon new or different facts, circumstances, or law, make
16 application to the same judge or court that made the order, to reconsider the matter and modify,
17 amend, or revoke the prior order. The party making the application shall state by affidavit what
18 application was made before, when and to what judge, what order or decisions were made, and
19 what new or different facts, circumstances, or law are claimed to be shown.
- 20 2) The Court finds Mother’s motion for reconsideration of the Court’s 6/23/26 order (FOAH filed
21 7/9/26) is timely as it falls within the 10-day window allowed under CCP 1008.
- 22 3) In proceeding to the merits of the motion for reconsideration, the Court finds there is no evidence
23 of new or different facts or circumstances or change in law warranting reconsideration.
- 24 4) Mother argues that the newly discovered fact the children reside with their aunt in Sacramento
25 warrants reconsideration; however, regardless of who may be caring for the children at this time,
26 Father possesses sole legal and sole physical custody of the minor children. As such, the
27 guideline child support calculation, which is based on Father’s 100% parenting timeshare,
28 remains unchanged.
- 29

- 1 5) In addition, the Court previously considered Mother's claim that Father was receiving \$5,000 per
2 month in IHSS wages; however, the Court did not find a preponderance of the evidence presented
3 at the time supported this claim. Mother presented no additional evidence in support of this claim.
- 4 6) As such, the Court does not find good cause to grant Mother's motion for reconsideration;
5 Mother's motion for reconsideration is DENIED.
- 6 7) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 7 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).